State Represented By S. G. Palya vs Nos.1 And 2 on 19 April, 2021

IN THE COURT OF THE VI ADDL. CHIEF METROPOLITAN MAGISTRATE, BENGALURU CITY

PRESENT : RAGHAVENDRA VAIJANATH B.A., LL.B., (NEW) VI A.C.M.M., BENGALURU CITY

DATED : 19th DAY OF APRIL, 2021

JUDGMENT UNDER SECTION 355 OF CR.P.C.

01. The serial number of the case :	C.C. No. 2190/2016
02. The date of the commission : of the offence	27.02.2015
03. The name of the complainant :	State represented by S. G. Palya P.S., Bengaluru.
04. The name of the accused person, and his parentage and residence :	01. SMT. MUSKAN W/o MOHAMMED WALID, Aged 33 Years, R/o No.42, 1st Floor, 8th B Main Road, NIMHANS Layout, BTM 1st Stage, Bengaluru. 02. SHRI. MOHAMMED WALID S/o AKBAR PASHA, Aged 41 Years, R/o No.42, 1st Floor, 8th B Main Road, NIMHANS Layout, BTM 1st Stage, Bengaluru.
05. The offence complained of or proved :	U/s. 23, 26 of Juvenile Justice Act and Sec.14 of Child Labour (Prohibition and Regulation) Act, 1986 and Sec. 341,323 R/w Sec.34 of Indian Penal Code, 1860.
06. The plea of the accused :	The accused nos.1 and 2 pleaded not guilty.
07. The final order :	The accused nos.1 and 2 are acquitted.
08. The date of such order :	19.04.2021

BRIEF STATEMENT OF THE REASONS FOR THE DECISION

The accused nos.1 and 2 herein have faced the trial for the offences punishable under Section 23, 26 of Juvenile Justice Act and Sec.14 of Child Labour (Prohibition and Regulation) Act, 1986

and Sec. 341, 323 R/w Sec.34 of Indian Penal Code, 1860, upon the police report filed by the Police Sub Inspector, Mico Lay out Police Station, Bengaluru. Thereafter, in view of split of jurisdiction the case was transferred from Mico Layout P.S., to S. G. Palya P.S., Bengaluru.

02. Prosecution version which led to the trial of the accused persons is essentially as follows:

The offence is registered at the instance of one Gunasheela W/o Srinivas, a worker with child line. It is specifically stated in the first information statement that, after receipt of information on Child Line number 1098 by the public that a minor girl was kept as labour by the accused persons in their house and was engaged in doing their domestic work and was ill-treated and was often beaten by the accused persons for various petty reasons. In view of the information received, a raid was conducted with the aid of police at the residence of accused persons on 27.02.2015. During the course of the raid, a girl namely Saida, was found present on the scene of offence. When the first informant enquired with the said girl, she has specifically stated that the accused no.1 had brought her from her native place from Kushal Nagar of Madikeri District for doing

the household work of accused persons. Under these circumstances first information statement was given and a case was registered by the Mico Layout P.S., Bengaluru in Crime No.225/2015. On completion of the investigation, charge sheet was laid against the accused Nos.1 and 2 for the charge punishable under Sections stated supra to stand trial.

03. On receipt of the charge sheet, the Court took the cognizance of the said offences and issued summons requiring the appearance of accused nos.1 and 2 and accordingly the accused have appeared through their counsel in pursuance of the summons and got enlarged themselves on bail and prosecution papers were furnished to the accused nos.1 and 2 in compliance of Section 207 of Criminal Procedure Code, 1973, and this Court framed charge and additional charge against the accused nos.1 and 2 and charge under Section 23, 26 of Juvenile Justice Act and Sec.14 of Child Labour (Prohibition and Regulation) Act, 1986 and additional charge under Section 341, 323 R/w Sec.34 of Indian Penal Code, 1860 is stated, read over and explained to the accused nos.1 and 2 to which they pleaded not guilty and claimed to be tried. Hence, the case was posted for trial.

04. During the trial, in order to establish the case, the prosecution has examined P.W.1 (i.e.,C.W.1), P.W.2 (i.e., C.W.2),

P.W.3 (i.e., C.W.5), P.W.4 (i.e., C.W.6), P.W.5 (i.e., C.W.8), P.W.6 (i.e., C.W.11) and got marked documents at Ex.P-1 to Ex.P-6.

05. At the conclusion of the prosecution evidence, the accused nos.1 and 2are examined Under Section 313(1)(b) of Criminal Procedure Code where incriminating material appearing in the prosecution evidence has been brought to the notice of the accused nos.1 and 2, who denied the same and the defence of accused nos.1 and 2 is one of total denial and no evidence let in for the defence.

06. I have heard learned SR. A.P.P. appearing for the State and Shri. B.A.K. Advocate, the learned counsel appearing for the accused nos.1 and 2.

07. Upon hearing arguments and on perusal of material placed on records, the following points arise for determination in the case:

(1) Whether the prosecution proves beyond all reasonable doubt that the accused nos.1 and 2 have committed the offence punishable under Section 23, 26 of Juvenile Justice Act and Sec.14 of Child Labour (Prohibition and Regulation) Act, 1986 and Sec. 341, 323 R/w Sec.34 of Indian Penal Code, 1860?

(2) What order?

08. My findings on the above points are as under:

Point No.1 : In the Negative
Point No.2 : As per final order for the following;

REAS O NS

9. POINT NO. 1 : From the record no offence seems to have been made out either under Section 23 or under Section 26 of the Juvenile Justice, I say so because, as it has never been the case of the prosecution that the girl was being forced to work in the house of the accused persons. At the same time, it has never been the case of the prosecution that the girl had been employed to do hazardous work and as such the offences under the Juvenile Justice Act never

gets attracted.

10. "Child" as defined in Section 2(ii) of the Child Labour (Prohibition And Regulation) Act, 1986 means a person, who has not completed his 14 years of age.As per first information statement that Saida, who was alleged to have been found working at the residence of the accused persons was aged about 11 years. Contrary to it, P.W.1/first informant in Ex.P-3, letter, contended that the age of Saida was about 10 years. Whereas still contrary to it, P.W.3 and P.W.4 in Ex.P-5 and Ex.P-6, statements, stated that the age of Saida was 13 years. The prosecution has not filed certificate granted by a prescribed medical authority, as per Section 16(2) of the Child Labour (Prohibition And Regulation) Act, 1986, to prove the age of child specially when the age of the child is uncertain. The prosecution has failed to prove the age of the child as required by the Child Labour (Prohibition And Regulation) Act, 1986. Therefore, in this case, the basic ingredients of Section 14(1) of the

Child Labour (Prohibition And Regulation) Act, 1986 that the accused persons had employed a child at their residence has not been proved, as required by the Child Labour (Prohibition And Regulation) Act, 1986.

11. So far as the evidence of P.W.1 and P.W.5 is concerned with regard to the allegation of the prosecution under Section 323 and 341 R/w Section 34 of Indian Penal Code is in the nature of hearsay which cannot be relied upon. P.W.3 and P.W.4 did not support the prosecution version. It is relevant to note that P.W.5 in her evidence before the Court deposed that when she met P.W.2 first time she found pinched injuries and cracks on her hands and legs and P.W.2 in her evidence stated that she was medically examined, but prosecution did not produce any medical report of P.W.2. It is not, thus, clear as to any injuries were caused to P.W.2 and if any injuries were caused when the alleged injuries were caused to P.W.2 and if so by whom. In the absence of corroborative evidence the evidence of P.W.2, Saida, alone is of no benefit to the prosecution. Apart from that as per the evidence of P.W.1, Ex.P-1, first information statement, was written by her. Contrary to it, the evidence of P.W.2 is that Ex.P-1 was type written in the police station. But Ex.P-1 is a hand written statement. These material contradictions cast doubt on the prosecution case and enure to the benefit of accused persons.

12. For the reasons already given there is no need to discuss in detail evidence of prosecution witnesses as the requirements of Section 23 and 26 of the Juvenile Justice Act and Section 14(1) of the Child Labour (Prohibition And Regulation) Act, 1986 and Sec. 341, 323 R/w Sec.34 of Indian Penal Code, 1860 are not at all satisfied in this case. Therefore, I do hold that the prosecution has failed to prove the case under Section 23 and 26 of the Juvenile JusticeAct and Section 14(1) of the Child Labour (Prohibition And Regulation) Act, 1986 and Sec. 341, 323 R/w Sec.34 of Indian Penal Code, 1860 against the accused nos.1 and 2 and therefore, the accused nos.1 and 2 cannot be convicted and sentenced under said sections. Accordingly, I answer point No. 1 in the negative.

13. POINT No. 2: In view of my answer to point No.1, I proceed to pass following:

ORDER

Acting under Section 248(1) of Cr.P.C., accused no.1 - Smt. Muskan W/o Mohammed Walidand accused no.2 - Shri. Mohammed Walid S/o Akbar Pasha are acquitted of the offence punishable under Section 23 and 26 of the Juvenile JusticeAct and Section 14 of the Child Labour (prohibition And Regulation) Act, 1986 and Sec. 341, 323 R/w Sec.34 of Indian Penal Code, 1860.

The accused nos.1 and 2are on bail. Their bail bond stands cancelled and surety is discharged.

The accused nos.1 and 2 shall execute bond in a sum of Rs.25,000/- each with a like sum surety to the satisfaction of this Court, undertaking to appear before the Hon'ble higher Court as and when such Court issues notice in respect of any appeal or petition filed against this judgment and such bail bonds shall be in force for six months as mandated under Section 437A of Cr.P.C.

(Typed directly on computer by me, after corrections pronounced by me in Open Court on this the 19th day of April, 2021).

(RAGHAVENDRA VAIJANATH) VI ACMM., Bengaluru City ANNE XURE [I] LIST OF WITNESSES EXAMINED FOR PROSECUTION:

(1) P.W.1 : Gunasheela W/o Srinivas (2) P.W.2 : Saida (3) P.W.3 : Ashok S/o Vasanthappa (4) P.W.4 : Savithri W/o Ashok (5) P.W.5 : Meenakshi W/o C. G. Seshacha (6) P.W.6 : M. Neelakantan S/o Muniswamy [II] LIST OF DOCUMENTS MARKED FOR PROSECUTION:

(1) Ex.P-1 : First information statement (2) Ex.P-1(a) : Signature of P.W.1 (3) Ex.P-2 : Spot Mahazar (4) Ex.P-2(a) : Signature of P.W.1 (5) Ex.P-3 : Letter (6) Ex.P-4 : Statement of P.W.2 (7) Ex.P-4(a) : Signature of P.W.2 (8) Ex.P-5 : Statement of P.W.3 (9) Ex.P-6 : Statement of P.W.4 [III] LIST OF MATERIAL OBJECTS

MARKED FOR PROSECUTION:

: - Nil-

[IV] LIST OF WITNESSES EXAMINED FOR DEFENCE:

01. M. O. 1 : -Nil-

[V] LIST OF DOCUMENTS MARKED FOR DEFENCE:

01. M. O. 1 : -Nil-

(RAGHAVENDRA VAIJANATH) VI ACMM., Bengaluru City